

Madan Pal v. State of U.P.

Allahabad High Court · Division Bench · 16 February 2017 · Writ-C No. 6421 of 2017 · **Writ dismissed; relegated to Section 127 appeal against the final assessment.**

HEADNOTE

Once inspection has been followed by a provisional assessment and a completed final assessment, a writ challenging that assessment is not entertained. The consumer has a statutory appeal under Section 127 of the Electricity Act, 2003. The High Court dismissed the petition without examining submissions on the merits of the assessment.

FACTUAL SUMMARY

Inspection of the petitioner's premises on 21 November 2016 led to a provisional assessment and a final assessment dated 13 February 2017. Madan Pal filed a writ challenging that assessment. On 10 February 2017 the Court gave the Power Corporation five days to confirm whether a final Section 126 bill had issued. At the 16 February 2017 hearing it transpired that a final assessment had been completed, and the Corporation pressed the statutory appeal under Section 127 of the Electricity Act, 2003.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ-against-final-assessment-relegated-to-s127-appeal

HOLDING

After inspection, a provisional assessment, and a final assessment, the High Court will not entertain a writ assailing that assessment: the consumer has a statutory alternative remedy of appeal under Section 127 of the Electricity Act, 2003, and the petition is dismissed without examining the merits of the challenge. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

Once inspection has been followed by a provisional assessment and a completed final assessment, a writ challenging that assessment is not entertained. The consumer has a statutory appeal under Section 127 of the Electricity Act, 2003.. ¶ 1

s126-procedural-strictness-notice-and-hearing

Once inspection has been followed by a provisional assessment and a completed final assessment, a writ challenging that assessment is not entertained. The consumer has a statutory appeal under Section 127 of the Electricity Act, 2003.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHALLENGE TO THE FINAL ASSESSMENT

Counsel made several submissions assailing the assessment; the Court did not examine them and dismissed the writ for the statutory appeal under Section 127. ¶ 1